Malcolm Mackerras AO
[redacted]

Mr. Jerome Laxale MP, Chair
Senator Richard Colbeck, Deputy Chair
Joint Standing Committee on Electoral Matters
PO Box 6021
Parliament House
Canberra ACT 2600

Dear Jerome and Richard

Greetings!

Further to your invitation to me (and others) dated 4 September 2025 I respond with this submission in which I again take up the question of a much-needed reform of the Australian Senate electoral system. However, before I go into details on that subject, I should mention that I have read your terms of reference. Therefore, I begin by noting possible reforms I do not want.

Although I have a position with the Australian Catholic University this submission is written in a private capacity. For what it is worth my ACU position carries the description "Distinguished Fellow of the Patrick McMahon Glynn Institute." I have the post nominals AO for which the citation includes reference to my commitment to reform and improvement of the electoral system.

<u>Reforms I do not want</u>

I do not seek any change to the electoral system which may need an amendment to the Australian Constitution. Therefore, I do not seek to extend the term of the House of Representatives beyond the current three years. I am opposed to fixed terms for the House of Representatives. With special emphasis I am opposed to any

lengthening of the terms of senators. I also am opposed to any change to section 57 of the Constitution. When asked to say what I think to be the best possible set of arrangements the reply I give is always "the present arrangements". I confidently predict that there will be no change during my lifetime.

At least for the time being I am opposed to any change to the electoral system for the House of Representatives. I can always be relied upon to defend the present system. I defend the present ballot paper which is honest and fair between candidates in a candidate-based system. It is reasonably voter friendly. It is not fully voter friendly, which leads me to acknowledge that I may favour some reforms well down the road. I would, however, be surprised if there is any change during my lifetime.

The reform I want – and request

I have six electoral reform principles. These guide me to say that I only ever ask for genuine democratic reforms. At the present time there are only two on my list. They are the Senate electoral system and the electoral system for the Victorian Legislative Council. Reform of the Senate electoral system, however, is far more important and urgent than that for the Victorian Legislative Council. When communicating with Victorian politicians, psephologists and electoral officials I describe the Senate system as being "wholly without virtue or merit of any kind." Anyway, here are my principles:

First, every member of every Australian house of parliament should be directly chosen by the people.

Second, an electoral system should be constructed according to clearly explained principles after which this maxim applies: "Let the chips fall where they may".

Third, the ballot paper should be honest and voter friendly.

Fourth, above-the-line voting is a bad idea, but it can be justified in some cases of high district magnitude.

Fifth, never let the perfect be the enemy of the good.

Sixth, logic is a poor guide compared with custom.

Bearing in mind the above principles my first attachment is a model ballot paper for a typical half-Senate election in which seven senators are elected. Readers should note the date of the model ballot paper in question. It is 17 June 2022. I hope members of the Committee will read the short essay on the reverse side titled "Calling an end to a bad Senate voting system". That essay makes clear that this model is not my preferred type of ballot paper. I have, however, decided not to present my first preference (dated 14 November 2017) purely because my many conversations with politicians have told me that there is no chance of its adoption. Ordinary voters like it, but they would typically say: "I like your arguments, but I don't like your chances." Almost every politician to whom I showed that model ballot paper would say, quite simply: "No way. You are trying to disrupt party unity."

<u>My JSCEM submission dated 25 August 2022</u>

Readers should note another detail. The date of my now proposed model Senate ballot paper is shown as 2027. At the time I wrote my last JSCEM submission (dated 25 August 2022) I expected that the next election would be in May 2025 with the one after that being in November 2027. That is made clear in the second attachment in my document titled "Thwaites-McGrath". That document is my submission made at roughly the same time in 2022 as I am making now in 2025. I ask members to note that virtually every opinion I now express was expressed then. I have only changed my mind on trivial details. Once again, my apparent change of mind is not because my mind has changed. It is because I seek to sell propositions which I believe can be sold, not those indicating what I want when I have come to realise that I cannot sell them.

Towards the bottom of page 5 of my second attachment I have a heading titled "What if no change is made?" My first two sentences read: "I insist that my democratic requests should be met by the 47th Parliament so that the 48th Parliament can be elected under decent systems for both houses. I admit, however, that I may not get my way." I am now in the position of needing to acknowledge that the 2025 election was not conducted under a decent Senate voting system but the 49th Parliament might be elected in November 2027 and may be so elected. In that case eight

senators would be elected in each state – but the permanent number thereafter would be seven. Therefore, my model ballot paper would apply in the longer term.

The detail of what I now propose

Under my (slightly revised) plan there would be 92 senators. Under the so-called "nexus" provision of the Constitution there would be 173, 174 or 175 members of the House of Representatives. The exact number would depend on how the fractions worked out. Each state would have 14 senators and each territory four. Senators David Pocock, Katy Gallagher, Malarndirri McCarthy and Jacinta Nampijinpa Price would have their terms extended. They would now expire on 30 June 2031 and have the same term as if they had been elected in May 2025 in a state for the normal six-year term. Seven senators elected from each state in 2027-28 would have terms expiring on 30 June 2034 but the least successful senator of the eight elected would have a term expiring on 30 June 2031. The upshot, therefore, would be to have 46 senators with terms expiring on 30 June 2034 and 46 expiring on 30 June 2031.

The ballot paper I propose is both honest and voter friendly - making a big contrast to the present ballot paper which is both dishonest and voter unfriendly. My voter friendly ballot paper would be the same in principle for all Senate elections, whether they be for 14 senators, for eight, seven, four or two.

Members of the Committee are now invited to read the whole of my submission dated 25 August 2022 and bear in mind that, with the trivial exceptions of what I write above relating to territory representation, every opinion I express there is what I now propose.

My letter to the Victorian Parliament dated 14 March 2025

My third attachment to this letter consists of my most recent correspondence with the Electoral Matters Committee of the Victorian Parliament where the chairman is Mr. Dylan Wight, the Labor member for Tarneit. There are four reasons why I hope that members of the federal JSCEM will read this.

First, I want members to know that there exists a significant likelihood that Victoria will decide to copy the new system whereby the Western Australian Legislative Council is elected. There is also a significant likelihood that Victoria will decide simply to stay with its present system. By contrast there is virtually no chance that Victoria will copy the Senate voting system. When Victoria firmly makes the decision not to copy the Senate voting system it will be very easy for me to claim that no state has demeaned itself by copying the Senate voting system. The states know how bad the Senate voting system is. By "the states" I mean, primarily, New South Wales, Victoria, South Australia and Western Australia, none of which will copy the Senate voting system. Two states are exceptional. Queensland has no proportional representation system. Tasmania has the very democratic Hare-Clark method.

Second, I want members of the Committee to understand why I think of Antony Green and Kevin Bonham as being my opponents. Both men proudly "own" the Senate system and have tried to tell the above states that it should be copied by them. The states have rebuffed both Green and Bonham by adopting a ballot paper in which it is made clear that the expression of a single first preference for a party above the line is counted as a formal vote. While it is true that such is the case for Senate voting the important point is that voters are not told such a truth. Instead, they are told that such a vote would not be counted. Thus, the Australian Electoral Commission tells voters that numbering above-the-line must be 1, 2, 3, 4, 5 and 6 otherwise the vote is rejected as informal. The AEC tells a straight-out lie. It knows perfectly well that a single first preference for a party above-the-line is required by law to be counted as a formal vote.

I find the propaganda of Antony Green more offensive than that of Kevin Bonham. Green describes the Senate system wrongly – although I suppose a charitable person would say that he describes it euphemistically. In his blog he has written: "Voters were suggested to mark a minimum six preferences above-the-line, though one was enough to be formal, or a minimum 12 preferences below the line."

The word "suggested" is wrong. The correct word is "instructed", as Green would know full well. Voters have been instructed to mark a minimum of six preferences above the line. While it is true that a single first preference has been enough to be formal the AEC has gone out of

its way to keep that a secret. For more details see my next attachment, "A Summary of newspaper and other comments by Malcolm Mackerras and Other Commentators on the Sixth Australian Senate Electoral System."

The third reason why I have included this letter to the Victorian Parliament is to draw attention to pages 3, 4, 5, 6 and 7. Page 6 tells a straight-out lie, but page 7 is more offensive. Voters want to know how to make their votes count. A single first preference above-the-line is counted as a formal vote. That should be stated. Instead, voters are told that only a ballot paper marked 1, 2, 3, 4, 5 and 6 is counted above the line - and only 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11 and 12 below the line. Yet six preferences below the line are required by law to be counted as a formal vote.

Members of the Committee may notice that above I have a sentence "The AEC tells a straight-out lie", and the words "straight-out lie" are repeated on this page immediately above. Those are the words I use when I give talks on this subject. When I explain all the details of this system my audiences have no difficulty about accepting that the Electoral Commissioner tells lies about Senate voting because I use the word "lie" as normally understood. However, I know that the legislation to implement this system (the *Commonwealth Electoral Amendment Act 2016*) is incredibly cunning.

That gives me the opportunity to draw attention to pages 6 and 7 of my letter to Dylan Wight. Page 6 shows a vote above the line which is perfectly formal but immediately tells the lie that "Your vote would NOT be counted." So, how does the Electoral Commissioner escape the accusation that he is telling a lie? The answer is that he has a note: "There are vote-saving measures in electoral law that allow some votes that haven't completely met the voting rules to be counted." The statement is true but is only relevant to this case because of the cunning of the politicians who voted for the so-called "democratic reform" implemented by the *Commonwealth Electoral Amendment Act 2016*.

Therefore, in respect of an honest ballot paper the comment about vote savings measures is reasonable. For the Senate it is quite unreasonable. So, where is it reasonable? The answer is that the Australian House of Representatives ballot paper is honest. So too is the referendum ballot

paper. Thus, the then Electoral Commissioner, Tom Rogers, could go on television to explain the situation in the Voice referendum. He did that in September 2023 immediately upon the Governor-General issuing the referendum writ. He could also do that for a by-election if the need arose.

Just suppose, however, that in July 2016, May 2019 or May 2022 there had been a tough television interviewer seeking to force Tom Rogers to tell the truth, the whole truth and nothing but the truth. Or just suppose that in April-May 2025 there had been a tough TV interviewer seeking to force Jeff Pope to tell the truth, the whole truth and nothing but the truth. That interviewer could have made mincemeat of the Electoral Commissioner seeking to give the official line which is so implausible as to arouse voter anger if the voter knew about the level of deceit involved.

The solution, therefore, lies in the Commonwealth of Australia adopting for its Senate elections an honest ballot paper identical in principle to that which applies for Legislative Council elections in New South Wales, South Australia and Western Australia.

In the case of Victoria, I ask members of the Committee to read my letter to Dylan Wight, especially page 3 but also page 7, the last page. From it can be seen why I describe the so-called "education" campaign of the AEC to be the pumping out of misinformation. The left-hand House of Representatives ballot paper instructions are honest but on the right-hand side voters are told that one's Senate vote is not counted unless the numbering be 1, 2, 3, 4, 5 and 6 above the line or 1 to 12 below the line. Yet the AEC knows perfectly well that a single first preference above the line is a formal vote as are six consecutive preferences below the line.

Regarding Victoria members of the JSCEM should know that Victoria's politicians will not copy the Senate voting system – no matter how hard Antony Green and Kevin Bonham try to tell them to do so. Victoria will either adopt the WA system (as I recommend) or it will allow the present system to continue. Any decision to allow the present system to continue would be commended by me – unless the alternative is to copy the new Western Australian system. Green and Bonham would condemn such a decision – as they have done on two previous occasions. That illustrates the difference between us.

The document titled "A Summary of newspaper and Other Comments by Malcolm Mackerras and Other Commentators on the Sixth Australian Senate Electoral System

Members of the Committee should know that I have been campaigning on this subject ever since November 2017 and I have collected much in the way of newspaper commentary. All of this I placed into a single document known as "A Summary of newspaper and Other Comments by Malcolm Mackerras and Other Commentators on the Sixth Australian Senate Electoral System". I invite members of the Committee to read this document, which is my next attachment.

There is, however, one further point I wish to make. I did not update this document to cover the 2025 election because there was no need to do so. What I can say is that Tom Rogers told lies about Senate voting in July 2016, May 2019 and May 2022. He also pumped out misinformation on the second last page of the "Your official guide" pamphlet. The same is true of the second last page of the Jeff Pope equivalent document "Your official guide to the 2025 federal election Saturday 3 May 2025". Those two men told those lies and pumped out that misinformation because they were instructed to do so by the cunning politicians who designed the *Commonwealth Electoral Amendment Act 2016*.

Increasing Senate district magnitudes

My instinctive view is that Green and Bonham would agree with me when pressed. After all, what I am proposing now is identical in principle for district magnitude seven that they proposed back in 2013, 2014 and 2015 for district magnitude six.

So, I had best define the term "district magnitude". It is psephological jargon for the number being elected. So, all mainland lower house elections in the states and for the House of Representatives are district magnitude one while half-Senate elections are normally for district magnitude six – with 12 being the equivalent following a dissolution of the Senate.

My proposal is for Senate district magnitude normally to be seven for each state and two for each territory. Following the dissolution of the

Senate, however, district magnitude would be 14 for each state and four for each territory. My justification is that the degree of proportionality would be increased by such increases in district magnitude. In any event odd numbers are better than even numbers. Therefore, seven as the normal number is better than six as the normal number.

For all the reasons stated above I insist that I am advocating a genuine democratic reform of the Senate electoral system. It has occurred to me, however, that Antony Green might oppose me, using the arguments he used in his blog post of 30 May 2025 titled "Why One Nation's Senate victories show that the 2016 Senate electoral reforms were right".

In his post he describes how Pauline Hanson's One Nation Party unexpectedly took a Senate seat from the Nationals in New South Wales and from the Liberals in Western Australia. He also notes that the system which operated from 1984 to 2014 created the description "pariah party" of which PHON was the text-book case. He welcomes the fact that the 2016 Senate reform ended Pauline Hanson's pariah status by causing her to win a Senate seat in 2016 when her pariah status prevented her earlier re-entry into the federal parliament.

However, he goes further than that. He argues that the change which *really* gave those two seats to PHON was the compulsory preference instruction for voters above the line. He makes this comment: "The two victories by One Nation are the first half-Senate elections where a party has come from behind to win after preferences."

I agree with Green's analysis. If I were proposing that district magnitude remain at six, he might well argue that I want my proposed change because I have it in for Pauline Hanson and her party. The point I make, however, is that I am not proposing district magnitude stay at six. I am advocating that it be increased to seven. For that reason, I would be very surprised if Pauline Hanson objected to my proposal.

<u>Justifying the by-product of my Senate electoral reform</u>

It can be seen from all the above that I think of myself as advocating a genuine democratic reform of the Senate electoral system. Yet other people would say that I am looking for ways to justify having 173, 174 or 175 members of the House of Representatives rather than 150. My

reaction to such a criticism is to dispute the proposition that such a change would benefit any one party or disadvantage any other. In this regard my favourite statistic is to compare the 2024 general election in the United Kingdom with the 2025 general election in Australia.

At the 4 July 2024 United Kingdom general election there were 48,247,224 electors on the roll and 650 members were elected to the House of Commons. Therefore, each member of the British House of Commons has an average of 74,227 electors on his/her roll.

At the 3 May 2025 Australian general election there were 18,098,797 electors on the roll and 150 members were elected to the House of Representatives. Therefore, each member of the Australian House of Representatives has an average of 120,659 electors on his/her roll. Suppose there were 175 electoral divisions, however. Then the average would have been "only" 103,421 on each electoral roll – but still well above the British average.

In truth I think the case is unanswerable for the by-product arising from my proposal to have a genuine democratic reform of the Senate electoral system. However, having included four attachments dealing with my Senate reform I thought I should have one attachment dealing with its by-product. Hence my final attachment of two tables.

From Table 1 the notice of readers is drawn to the fact that at the elections of 1949, 1951 and 1954 there were ten divisions in South Australia. The third election was in 1954 when the three largest enrolments were 60,064 in Kingston, 56,628 in Port Adelaide and 50,967 in Sturt. Those numbers were thought to be so high that one extra division was created for South Australia in 1955. It was the new seat of Bonython with 38,361 electors. Therefore, it was possible to reduce Kingston to 44,514, Port Adelaide to 43,348 and Sturt to 43,658.

At the May 2025 general election (also the third on a set of boundaries with ten seats) the largest South Australian enrolments were 138,902 in Spence, 137,756 in Mayo and 131,466 in Adelaide. One would not normally think it sensible to have a redistribution when all ten divisions would have high numbers like that. However, the law required it to be made. Thus page 12 of *The Weekend Australian* for 11 and 12 October carried an advertisement headed "Have your say about South

Australia's federal electorates". So, all manner of submissions will be sent to the Redistribution Committee for South Australia for this pointless redistribution. If I have my way, that redistribution will be cancelled and the exercise done all over again with the need to divide South Australia into 12 divisions, a far more sensible number. If one extra seat was required in 1955, two more South Australian seats are well and truly justified in 2026.

Table 2 of my final attachment does for New South Wales the same exercise as above for South Australia. The set of boundaries applying in 1955, 1958, 1961, 1963 and 1966 was the set applying for the longest period and over the greatest number of elections. The statistics speak for themselves. If an extra seat was justified for South Australia in 1955 and two in 2026 then the creation of nine for New South Wales in 2026 is equally justified.

I really don't think I need to give further elaboration on the easily justified by-product of my proposal for a genuine democratic reform of the Senate electoral system.

Yours sincerely

Malcolm Mackerras